



U.S. Department
of Transportation

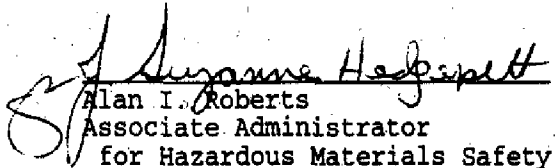
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10563 (EXTENSION)
ORIGINAL August 26, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10563 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 30 1995

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

PCR, Inc.
Gainesville, FL

April 11, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 10563

1. PCR, Inc., Gainesville, Florida, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain flammable liquids that are also corrosive materials for requirements specified herein. This exemption authorizes the shipment of certain materials described as flammable liquid, corrosive, n.o.s. in stainless steel DOT Specification 57 portable tanks and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on PCR's application dated July 16, 1990 and additional information dated March 13, and March 28, 1991 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Flammable liquids, corrosive n.o.s., (hexamethyldisilazane, pure, or mixtures thereof identified in the petitioner's application of July 16, 1990), classed as flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable liquid corrosive, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.119 (m).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 57 portable tank constructed of stainless steel, with the following restrictions:

a. When transported by vessel: (1) flammable liquids with flash points below 20°F are not authorized in these portable tanks, and (2) pressure relief devices must open at greater than 5 psig.

b. The design pressure of the portable tanks shall not be less than 9 psig.

c. The portable tanks shall be equipped with vents as prescribed in 178.253-4, however, no frangible devices are authorized.

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8. SPECIAL PROVISIONS.

a. Portable tanks must be retested and reinspected in accordance with 49 CFR 173.32(e) as prescribed for DOT 57 portable tanks.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

c. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

d. A copy of this exemption must be carried aboard each vessel, or motor vehicle used to transport packages covered by this exemption.

e. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

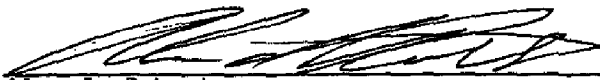
f. The outside of each package must be plainly and durably marked on two opposing sides "DOT-E 10563" in two inch high letters against a contrasting background.

g. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. June 30, 1993

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

AUG 26 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.